

The hearing is therefore continued for the parties to meet and confer pursuant to the statute.

13. 9:00 AM CASE NUMBER: C25-03770

CASE NAME: SHIELA WILEY VS. KAISER FOUNDATION HEALTH PLAN INC.

***MOTION/PETITION TO COMPEL ARBITRATION PETITION TO VACATE CONTRACTUAL
ARBITRATION AWARD**

FILED BY: WILEY, SHIELA

TENTATIVE RULING:

Before the Court is Petitioner Sheila Wiley's Petition to Vacate Arbitration Award. The Petition is **denied**.

Factual and Procedural Background

The Petition was filed on December 11, 2025. It moves to vacate the underlying arbitration award on three grounds: (1) the misconduct of the arbitrator substantially prejudiced petitioner's rights; (2) the arbitrator exceeded his or her authority, and the award cannot be fairly corrected; and (3) the arbitrator unfairly refused to postpone the hearing or to hear evidence useful to settle the dispute. The Petition attaches "Order No. 5" (the order Petitioner disputes), and attachment 10c2 (an outline of the 'facts supporting the grounds for vacating the award.')

The Kaiser Respondents filed a "Response to Petitioner Wiley's Petition to Vacate Arbitration Award and Request to Dismiss Petition for Failure to Comply with Code Civ. Proc. §1285" on January 13, 2026. On January 23, 2026, Petitioner filed her "Response to Respondent's Request to Dismiss Petition for Failure to Comply with Code Civ. Proc. § 1285," which included five separate parts totaling 156 pages. Thereafter, on January 30, 2026, the Kaiser Respondents then filed "Respondent's Memorandum in Opposition to Claimant's Petition to Vacate Arbitration Award," along with a declaration of counsel in support. On February 6, 2026, Petitioner then filed her "Reply to Respondents' Memorandum in Opposition to Claimant's Petition to Vacate Arbitration Award," which consisted of four parts totaling 136 pages. The Kaiser Respondents then filed, on February 17, 2026, "Respondents' Objections to Claimant's Reply Memorandum and Evidence." Not to be outdone, Petitioner then filed, on February 20, 2026, "Claimant's Reply to Respondents' Objections to Claimant's Reply Memorandum and Evidence."

Procedural Problems with Papers

"An application for an order is a motion." (Code Civ. Proc. § 1003.) As the Petition seeks an order, it is considered a 'motion.' A 'motion' consists of a notice of hearing, the motion itself, and a memorandum in support. (Cal. R. Ct. 3.1112(a).) "Other papers may be filed in support of a motion, including declarations, exhibits, appendices, and other documents or pleadings." (Cal. R. Ct. 3.1112(b).)

The only papers accepted related to a motion are the initial motion, an opposition, and a reply (along with supporting documents for each). (Code Civ. Proc. § 1005(b).) There is no provision in the Code of Civil Procedure, generally, for the filing of a 'sur-reply' (no matter how titled), nor for a second opposition and reply. The decision whether to consider a sur-reply is within the discretion of the trial court. (*Guimei v. General Electric Co.* (2009) 172 Cal.App.4th 689, 704.)

The Court is unclear why the Kaiser Respondents filed two separate ‘oppositions’ (one titled ‘response’ and one titled ‘opposition’) to the Petition.

As for Petitioner’s filings, breaking the filings into multiple parts, without any kind of index or description of the documents included in each part, substantially increased the Court’s work in trying to identify what documents were submitted and where they could be located. In addition, “electronic exhibits **must include** electronic bookmarks with links to the first page of each exhibit and with bookmark titles that identify the exhibit number or letter and briefly describe the exhibit.” (Cal. R. Ct. 3.1110(f)(4) emphasis added.) Petition did not abide by this Rule. Petitioner’s submissions instead include numerous exhibits without any index or bookmarks identifying what they are.

The lack of a declaration identifying the documents only added to the confusion since “[e]vidence received at a law and motion hearing **must be by declaration** or request for judicial notice without testimony or cross-examination, unless the court orders otherwise for good cause shown.” (Cal. R. Ct. 3.1306 (a), emphasis added.) Petitioner does not include any declarations or requests for judicial notice – thereby failing to include any admissible evidence. (See evidentiary objections below.)

“Matters set forth in points and authorities are not evidence.” (*Alki Partners, LP v. DB Fund Services, LLC* (2016) 4 Cal.App.5th 574, 590.) “Evidence appears elsewhere – in deposition testimony, discovery responses, and declarations.” (*Ibid.*) “The allegations of a brief are not evidence and a brief is not a sworn document.” (*In re Marriage of Duris & Urbany* (2011) 193 Cal.App.4th 510, 515.)

The original or copies of all evidence that will be presented to the court at the motion hearing must be served along with the notice of motion and memorandum of points and authorities. (Code Civ. Proc. § 1005(b); *David S. Karton, a Law Corp. v. Musick, Peeler & Garrett LLP* (2022) 83 Cal.App.5th 1027, 1048.) The “general rule of motion practice ... is that new evidence is not permitted with reply papers.” (*Jay v. Mahaffey* (2013) 218 Cal.App.4th 1522, 1537.) “[T]he inclusion of additional evidentiary matter with the reply should only be allowed in the exceptional case ...’ and if permitted, the other party should be given the opportunity to respond.” (*Id.* at 1537-38, citations omitted.)

As the Kaiser Respondents point out, Petitioner failed to include any evidence with her Petition. As noted above, even when she attempted to submit evidence in support of her Reply papers, she failed to include any declarations identifying or authenticating any of the documents. Before a ‘writing’ can be received in evidence it must be authenticated. (Evid. Code § 1401(a).) “To authenticate a writing, its proponent must introduce evidence sufficient to sustain a finding that it is the writing that the proponent of the evidence claims it is.” (*O’Laskey v. Sortino* (1990) 224 Cal.App.3d 241, 249, quoting Evid. Code § 1400.)

With the above overview in mind, the Court will wade into the issues raised by the parties.

Legal Standard

“California has a well-established policy favoring arbitration as a speedy and inexpensive means of settling disputes.” (*A.M. Classic Construction, Inc. v. Tri-Build Development Co.* (1999) 70 Cal.App.4th 1470, 1474.) “To support this policy and encourage parties to settle their disputes through arbitration, it is essential that arbitration judgments be both binding and final. Thus, as a general rule, courts will indulge every reasonable intendment to give effect to arbitration proceedings. To ensure that an arbitrator’s decision is the end of the dispute, arbitration awards are subject to very narrow judicial review.” (*Ibid.*) “Unless a statutory basis for vacating or correcting an award exists, a reviewing

court ‘shall confirm the award as made....’” (*Maaso v. Signer* (2012) 203 Cal.App.4th 362, 378.)

“Code of Civil Procedure section 1286.2 sets forth the exclusive grounds for vacating an arbitration award.” (*Maaso*, 203 Cal.App.4th at 371.) “Except on these grounds, arbitration awards are immune from judicial review in proceedings to confirm or challenge the award.” (*Ibid.* quoting *A.M. Classic Construction, Inc v. Tri-Build Development Co.* (1999) 70 Cal.App.4th 1470, 1475.)

Analysis

Arbitration Order Being Challenged

Initially, it appears that the Order being challenged by Petitioner is not reviewable by the Court. Code of Civil Procedure section 1285 allows any party to an arbitration in which an award has been made to “petition the court to confirm, correct or vacate **the award**.” An arbitration “award” must be in writing and “shall include a determination of all the questions submitted to the arbitrators the decision of which is necessary in order to determine the controversy.” (Code Civ. Proc. § 1283.4.)

Before confirming or vacating an award, the “trial court has a duty, in order to follow the dictates of section 1283.4, to ensure that the arbitrator’s ‘award’ is an ‘award’ within the meaning of the statute.” (*Cinel v. Christopher* (2012) 203 Cal.App.4th 759, 767.)

The Petition notes that the “award” provides for summary judgment and is attached to the Petition. The document attached to the Petition is Order No. 5 (neutral waiver), dated November 3, 2025. That Order is not an “award” as defined above, as it does not determine the controversy. It also does not rule on a summary judgment motion as indicated by Petitioner. Instead, it is an interim order wherein the arbitrator determined that Kaiser would be allowed to withdraw its waiver of consent to proceed with a single arbitrator. The arbitrator determined that each party would be able to appoint their own Party Arbitrator – and confirming that Kaiser had selected George Clause, Esq.

The Order also notes that Ms. Wiley would be allowed to pick her Party Arbitrator of choice – including, possibly a non-attorney such as her pastor. The arbitrator requested additional briefing on this issue. The Order also indicates that Kaiser’s request for reconsideration of its earlier filed summary judgment motion was granted “based upon the intervening deposition of claimant’s expert witness.”

The actual “award” is the Order on Respondent’s Motion for Reconsideration (“Award”) related to the Kaiser Respondent’s Motion for Summary Judgment. There are two versions of the Award – one dated November 26, 2025, and one dated November 30, 2025. Both versions are exactly the same but for the date. Petitioner attempts to argue that the “mere fact that there are two separate Orders should be enough to nullify this proceeding and require a new Arbitration.” (Reply at 8:5-6.) Petitioner opines as to why there are two versions but provides no credible evidence for her suppositions. Also, given that they are substantively the same, her arguments fail.

As noted by the Kaiser Respondents, the Petition fails to attach a copy of the “award” being challenged. Accordingly, it fails to comply with Code of Civil Procedure section 1285.4(c). Not only does the Petition fail to include the “award” sought to be vacated, Petitioner makes clear that she is “not arguing the award.” (Reply at 9:20.) In fact, in her Petition Mrs. Wiley specifically states “Claimant is not arguing the merits of this case here.” Instead, she is taking issue with an interim ruling by the arbitrator.

Petitioner fails to cite any authority wherein the Court can vacate an interim order of an arbitrator.

“Courts have repeatedly instructed litigants that challenges to the arbitrator’s rulings on discovery, admission of evidence, reasoning, and conduct of the proceedings do not lie.” (*Evans v. Centerstone Development Co.* (2005) 134 Cal.App.4th 151, 167.) A “challenge to an arbitrator’s evidentiary rulings or limitations on discovery should not provide a basis for vacating an award unless the error *substantially prejudiced* a party’s ability to present *material* evidence in support of its case.” (*Schlessinger v. Rosenfeld, Meyer Susman* (1995) 40 Cal.App.4th 1096, 1110 italics in original.)

Under Code of Civil Procedure sections 1285 and 1286.2, upon which the Petition is based, the Court can only vacate an “award” under certain circumstances. Petitioner’s failure to challenge the “award” in this case is fatal to her position.

Order No. 5

Even if the Court could review the interim order Petitioner takes issue with, Petitioner was not harmed by the ruling as it was shortly thereafter overruled. The gist of Petitioner’s complaint relates to the Kaiser Respondent’s late election to withdraw their waiver of the right to a Party Arbitrator which was allowed by Order No. 5.

Under the applicable rules, if a Demand for Arbitration seeks total damages of more than \$200,000 the “dispute may be heard and determined by one Neutral Arbitrator and two Party Arbitrators,” one appointed by each party. (Kaiser Response Ex. C – Rule 14.) The parties can, however, waive their right to a Party Arbitrator and, if both parties so waive their rights, the arbitration will proceed with a single Neutral Arbitrator. (*Ibid.*)

If the Demand for Arbitration seeks total damages of \$200,000 or less, “the dispute shall be heard and determined by one Neutral Arbitrator,” unless the Parties agree in writing that it should proceed with two Party Arbitrators and a Neutral Arbitrator. (*Ibid.*)

Mrs. Wiley filed her demand for arbitration on June 19, 2024. (Zhurnalova-Juppunov Decl. Ex. 1.) The demand did not include an amount of damages sought. (*Ibid.*) Under the rules, Party Arbitrators were used in arbitrations seeking more than \$200,000 – which this matter appeared to be. As noted by the Kaiser Respondents, Petitioner’s discovery responses showed she was seeking over \$1 million. (Zhurnalova-Juppunov Decl. Ex. 2.) Also, the Waiver of Party Arbitrator – Claimant form submitted by Petitioner states that “Party Arbitrators are used in arbitrations seeking more than \$200,000,” but that parties may waive the use of Party Arbitrators. (Petitioner Response Ex. E.)

Both parties submitted waivers. As such, the arbitration was to proceed with a single neutral arbitrator. On August 19, 2024, the Office of Independent Administrator, which administered the arbitration, selected Janice Sperow as the neutral arbitrator. (Zhurnalova-Juppunov Decl. ¶ 5.)

After the Kaiser Respondents initial Motion for Summary Judgment was denied by Arbitrator Sperow, they sought to withdraw their waiver and to have a Party Arbitrator appointed. Initially, in Order No. 5, the arbitrator granted the Kaiser Respondent’s request and appointed George Clause, Esq. as their Party Arbitrator. The Order noted that Petitioner would be allowed to pick a Party Arbitrator of her choice, including a non-attorney of her choosing, such as her pastor. (The arbitrator requested additional briefing on this issue.)

A week after the issuance of Order No. 5, Petitioner filed her Motion to Reconsider that decision.

(Zhurnalova-Juppunov Decl. Ex. 8.) In that Motion, she confirmed that her claim “is for \$200,000,” and as such there is no “automatic right for the Respondent to unilaterally assert the right for a Party Arbitrator.” (*Ibid.*) Accordingly, she requested that the earlier ruling allowing the Kaiser Respondents to “rescind its party arbitrator waiver be reversed” and that the matter proceed with a single arbitrator. (*Ibid.*)

On November 26, 2025, the arbitrator issued its order **granting** Claimant’s Motion for Reconsideration, and confirming the “arbitration shall proceed before a single neutral arbitrator.” (Zhurnalova-Juppunov Decl. Ex. 9.)

Thus, Order No. 5, which Petitioner is claiming is the basis of her Petition, was essentially overruled by the subsequent order on Petitioner’s motion for reconsideration. As such, it is unclear what the basis of Petitioner’s claims are related to the alleged impropriety of Order No. 5. That Order never took effect and the Kaiser Respondent’s were never allowed to use their Party Arbitrator. Instead, the arbitration continued with the single neutral arbitrator appointed by the OIC – which is what Petitioner sought. Consequently, there was no prejudice to Petitioner due to Order No. 5.

Evidentiary Objections

Kaiser’s objections to statements in Reply:

1-4: Overruled.

Kaiser’s objections to new exhibits:

1-4: Sustained.

Conclusion

In summary: Petitioner goes out of her way to state that she is *not* challenging the arbitration ruling on its substantive merits. It is no easy task to ascertain what exactly she *is* challenging, but it appears to be only the temporary ruling that there would be multiple arbitrators – a ruling that was then changed back to a single arbitrator at petitioner’s own demand. The case was in fact ruled on by a single arbitrator, the exact procedure that petitioner says should have been used. At most there might be some gripe about her being required to forgo damages in excess of \$200,000 in order to get back to a single arbitrator. But not only is that exactly what the rules require, but it is also manifestly “no harm, no foul”. Since petitioner in fact lost this arbitration by a summary judgment of no liability – a result she does not challenge here – it cannot have mattered how large her damages demand was.

Based on the above, the Petition to Vacate the Arbitration Award is **denied**.

14. 9:00 AM CASE NUMBER: MSC20-00628

CASE NAME: RISOFTEDEV VS CHATFIELD

***HEARING ON MOTION IN RE: DISCOVERY SANCTIONS AGAINST CHRISTOPHER L. MARTINEZ**

FILED BY: RISOFTEDEV INC

TENTATIVE RULING:

Plaintiffs filed this motion in March, for terminating sanctions against defendant Christopher Martinez for failure to produce documents in discovery as previously ordered. The motion was filed in good faith at the time, but it is **dropped from calendar** in light of very recent developments.